

actual notice, or that service was improper, when they argue that “someone at Defendants’ residence was served with process at the home.” They go on to argue that the description of Defendant Salazar did not match the description on a traffic collision report.

But they don’t argue that they did not receive notice, or that the person who received the documents at the home was not a competent member of the household. What’s more, the proof of service (filed on 9/2/25, and of which this court takes judicial notice), reflects substitute service, so it seems fairly reasonable that the person on whom the documents were actually served may not physically resemble the defendants.

Since service was effected by a registered process server, there is a rebuttable presumption that service was done properly. Defendants have not rebutted this presumption.

Defendants rely on *Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, for the argument that their reliance on their insurance carrier to defend them is excusable neglect. But in that case, the insured party promptly forwarded the summons and complaint to its insurance broker.

We don’t have that here. Defendants in the instant matter never sent any process documents to their insurance broker.

We have no other representation by the Defendants that this court can construe as a mistake, inadvertence, or excusable neglect.

The Defendants have not met their burden.

Disposition

Defendants’ Motion is denied.

Plaintiff to file Order.

10. 9:00 AM CASE NUMBER: L25-11026
CASE NAME: WELLS FARGO BANK, N.A. VS. GUADALUPE PALOMINO
***HEARING ON MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED AND OF**
NONAPPEARANCE
FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts

be Deemed Admitted (Motion), along with a Declaration.

Plaintiff attached the particular facts at issue, numbered One through Eleven and entitled, "Set One," in Exhibit A of their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating email service to counsel for Defendant.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

11. 9:00 AM CASE NUMBER: L25-14432
CASE NAME: WELLS FARGO BANK, N.A. VS. SAMANTHA THULL
*HEARING ON MOTION IN RE: MOTION TO DEEM REQ FOR ADMISSION ADMITTED/NON